

Present:

*Mr. Justice S M Kuddus Zaman*

*And*

*Mr. Justice Md. Ali Reza*

**17.01.2024**

Ms. Sayada Mohua Alam, Advocate

.....For the convict-petitioner

Mr. Sujit Chatterjee, Deputy Attorney General

.....For the State

This is an application for bail in a pending rule.

The petitioner has convicted in Metropolitan Special Tribunal Case No.556 of 2015 arising out of Motijheel Police Station Case No.26(4)2015 corresponding to G. R. Case No.130 of 2015 under section 19E of the Arms Act and sentenced to rigorous imprisonment for 10 (ten) years.

Ms. Sayada Mohua Alam learned Advocate for the convict-petitioner submits that petitioner Md. Saiful Islam was arrested in connection of this case on 23.04.2015 and from his possession one Chapati was allegedly recovered and seized. On conclusion of the trial the learned Metro Special Tribunal No.14, Dhaka has convicted the petitioner under section 19E of the Arms Act and sentenced him thereunder to suffer rigorous imprisonment for 10 (ten) years. Since a Chapati has dual use and keeping in possession of Chapati same does not require a license the learned Judge of Metro Special Tribunal No.14, Dhaka

committed serious illegality in convicting the petitioner under the Arms Act.

The petitioner has already served out more than  $1\frac{1}{2}$  years of above sentence and there is no likelihood of hearing of the rule on merit soon.

The learned Deputy Attorney General vehemently opposes the granting of bail to the petitioner.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR, seizure list, charge sheet and the impugned judgment and order of conviction and sentence dated 15.03.2021 that from the possession of the petitioner one Chapati was recovered and seized. A Chapati has dual use. It is used for domestic purposes for chopping meat or similar works. On the other hand a chapatti can be used for commission of an offence. A person is liable for committing of an offence by using a chapati. But mere keeping in possession of a chapati constitutes no offence since keeping in possession of a Chapati does not require a license.

The petitioner has already served out more than  $1\frac{1}{2}$  years of above sentence and there is no likelihood of hearing of the rule on merit soon.

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Considering above materials on record, we are inclined to grant bail to the petitioner.

As such, the application for bail is allowed.

Let convict-petitioner **Md. Saiful Islam, son of Md. Mongol Pramanik** be enlarged on bail till disposal of the rule, subject to furnishing bail bond to the satisfaction of the learned Metro Special Tribunal No.14, Dhaka.